

2. Lo v. Great Park
Neighborhoods Community
Association
23-1339745

Before the court is a Motion for Attorney's Fees and Costs filed by Cross-Complainant Aria Miran. This motion is **GRANTED**, in part, as set forth herein.

In the instant motion, Miran seeks an award of appeal related attorney's fees and costs against Cross-Defendants Yung-Tai Lo and Che-Jen Liang (the "Los"). The motion is brought pursuant to *Code of Civil Procedure §425.16(c)(1)* and follows the Court of Appeal affirming this Court's August 22, 2024 order denying the Los' anti-SLAPP motion.

Here, the Court has previously made a finding in its 3/27/25 Minute Order as follows: "the court finds that the anti-SLAPP motion was frivolous and that Miran is entitled to recovery of attorney's fees and costs under *CCP §425.16(c)*." The Court of Appeal affirmed the denial of the anti-SLAPP motion and the Los dismissed their appeal of the 3/27/25 order granting fees. "Appellate challenges concerning the [special] motion to strike are also subject to an award of fees and costs, which are determined by the trial court after the appeal is resolved." (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320) For the same reasons Miran was entitled to fees following denial of the anti-SLAPP motion, he is entitled to recover reasonable attorney's fees under *Section 425.16(c)* for fees incurred in connection with opposing the appeals filed by the Los regarding their anti-SLAPP motion.

"The amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar 'lodestar' method. (Citation) Under that method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.' (Citation)" (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491) "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

With regard to the billing rates, Miran has submitted copies of actual invoices. The declaration of counsel sets forth the experience of the attorneys and also states that the two paralegals were certified. The court finds that the billing rates are reasonable based on the declaration of counsel, as well as the court's knowledge of the novelty and complexity of the issues presented in this matter.

With regard to the time claimed to be related to the appeal, the Court has gone through each of the invoices submitted by Miran which are attached to the Supplemental Declaration at ROA 312, as well as the Los' detailed response to the Supplemental Declaration at ROA 314. Based on the Court's review of these documents as well as the briefs submitted by the parties, the Court finds that while many entries relate

		to the appeal, several are either insufficient to show they relate to the appeal or state that they relate to other matters. For example, there are several entries which relate to the motion for attorney's fees which was heard on 3/27/25, including time spent preparing briefs and appearing at the hearing. Also, several entries are so heavily redacted that even when considering the adjacent entries, the court cannot determine whether they relate to the appeal. Further, while Miran states he is seeking attorney's fees for the instant fees motion based on 12 hours of time, the Court finds a reasonable amount of time is six hours. Based on the foregoing, the motion is <i>GRANTED</i>, in part, and the Court finds the reasonable hours, billing rates and total billed to be as follows: Canada: 29.3 hours for total of \$11,857.50. (Canada's rate went from \$410 to \$425 at beginning of 2025; reasonable hours are 1.4 hours at \$410 and 27.9 at \$425) Pearson: 18.3 hours at \$650 per hour for total of \$11,895. Henley: .4 hours at \$235 per hour for a total of \$94. Acuna: .1 hours at \$195 per hour for a total of \$19.50 Billing for Instant Fee Motion: 6 hours at \$425 per hour for total of \$2,550 In addition, Miran seeks an award of \$422.70 in costs as set forth in his Memorandum of Costs on Appeal filed on 12/1/25 at ROA 251. The request for costs is GRANTED. Accordingly, the motion is GRANTED and Miran is awarded a total of \$26,416 in attorney's fees and \$422.70 for a total amount of \$26,838.70. <i>Counsel for Miran to give notice.</i>
3.	Mann v. Aptive Environmental, Inc. 26-1544135	Before the Court is a motion to compel arbitration filed by defendant Aptive Environmental, Inc. (Defendant) against plaintiff Ryan Mann (Plaintiff). For the reasons set forth below, the motion is GRANTED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (<i>Southland v. Corp. v. Keating</i> (1984) 465 U.S. 1, 12.) The party claiming the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying